Appendix R
(Clause D34 of *additional conditions of contract*)

The following clause shall be incorporated mutatis mutandis into the subcontracts at any tiers under the Contractor as additional conditions of contract –

Clause [X] – Mandatory Subcontract Conditions for Prohibition of Imposing Administrative Charges for Reporting of Site Accidents and Elimination of Under-reporting of Site Accidents

(1) In this clause, the following words and expressions shall have the meanings hereby assigned to them except when the context otherwise requires:-

"*Client*" means the Government of the Hong Kong Special Administrative Region;

"*Project Manager*" means the *Project Manager* for the Contract;

"Contract" means the main contract Contract No. HY/2022/14 made between the *Client* and the *Contractor*;

"*Contractor*" means the contractor who has entered into the Contract with the *Client* and entered into the Sub-contract with the Sub-contractor [Note: Replace the words "the Sub-contract with the Sub-contractor" with "a sub-contract with a sub-contractor at the first tier of the same chain of subcontracting in connection with this Sub-contract" for the second or lower tier subcontracts];

"Sub-contract" means this agreement;

"Sub-contractor" means the party who entered into this Sub-contract with the *Contractor* [Note: Replace the words "the *Contractor*" with "the Higher-tier-sub-contractor" for the second or lower tier subcontracts];

"sub-contractors" means all types of sub-contractors of the Sub-contractor, irrespective of tiers;

"Higher-tier-sub-contractor" means the party who entered into a subcontract at higher tier than this Sub-contract with another party and entered into this Sub-contract with the Sub-contractor; *[Note: Adopt this definition for the second or lower tiers subcontracts only]*.

(2) The Sub-contractor shall not impose charges in any form on any sub-contractor, or deduct any amount from the payment to which any sub-contractor is entitled, for reporting any accidents and processing any claims for compensation under the Employees' Compensation Ordinance (Cap. 282) on behalf of the sub-contractor.

(3) Where injury by accident arising out of and in the course of the employment is caused to any person employed by the Sub-contractor or sub-contractors on the Works or in connection with the Contract, the Sub-contractor shall, without delay, notify the Commissioner for Labour in such form and manner as required by the law and report the matter to the *Contractor* and *Project Manager*. This sub-clause shall apply irrespective of whether the person claims for compensation.

(4) Upon request by the *Contractor* [Note: Add "or the Higher-tier-subcontractor" for the second or lower tiers subcontracts], the Sub-contractor shall provide the original documents of the sub-contracts to the *Contractor* [Note: Replace "the *Contractor*" with "the Higher-tier-subcontractor" for the second or lower tiers subcontracts] who is authorized to provide the same to the *Project Manager* [Note: Add "and the *Contractor*" for the second or lower tiers subcontracts] for inspection.

(5) The compliance of this clause [X]# of the *additional conditions of contract* by the Sub-contractor is entirely without prejudice to and do not relieve the Sub-contractor from any of its obligations or responsibilities under this contract, the Factories and Industrial Undertakings Ordinance (Cap. 59), the Occupational Safety and Health Ordinance (Cap. 509) and the Employees' Compensation Ordinance (Cap. 282), and all their subsidiary legislation.